

**Superior Court of the State of California
County of Orange**

DEPT C20 TENTATIVE RULINGS

Judge Theodore Howard

The court will hear oral argument on all matters at the time noticed for the hearing. If you would prefer to submit the matter on your papers without oral argument, please advise the clerk by calling (657) 622-5220. If no appearance is made by either party, the tentative ruling will be the final ruling. Rulings are normally posted on the Internet by 4:00 p.m. on the day before the hearing.

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Date: June 25, 2026

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1.	Cicale v. LoanDepot.com, LLC 26-1544409	Before the Court is the unopposed application of attorney John Doran to appear in this matter pro hac vice as counsel for defendant LoanDepot.com, LLC. Mr. Doran has complied with the requirements set forth <i>in California Rules of Court, Rule 9.40</i>. Accordingly, the application is GRANTED.

		<i>Counsel for LoanDepot.com, LLC is ordered to give notice of this ruling.</i>
2.	Koc v. Unal 24-1450686	Pro per defendant Abdullah Unal's ("Defendant") unopposed Motion to Set Aside Default and Default Judgment is DENIED without prejudice. Defendant brings the motion pursuant to <i>Civ. Proc. Code § 473(b)</i>, which requires the responsive pleading (i.e. answer, demurrer, motion to strike, etc.) to be filed along with the motion. No such pleading was filed. There is also no evidence the motion was ever served on plaintiff Mesut Koc ("Plaintiff") as required by the code. (<i>Civ. Proc. Code § 1005.</i>) Based on the above, the motion is denied without prejudice to correcting the issues and refiling. The court warns Defendant that a renewed motion must be filed within six months of entry of judgment. (<i>Civ. Proc. Code § 473(b).</i>) Judgment was entered on March 25, 2026. (ROA 47.) <i>The Clerk of the Court will give notice of the ruling.</i>
3.	Reed v. Blucker 26-1554798	Before the Court is a special motion to strike pursuant to <i>Code of Civil Procedure section 425.16</i> filed by defendant James Blucker (Defendant) as to the complaint filed by plaintiff Curtis Reed (Plaintiff). For the reasons set forth below, the motion is GRANTED. Defendant's request for judicial notice is GRANTED. <i>Civil Procedure Code section 425.16(b)</i> provides: "A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States or California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (<i>Code Civ. Proc. § 425.16, subd. (b).</i>) In ruling on a special motion to strike under Section 425.16, the court must follow a two-step process. (<i>Baral v. Schnitt</i> (2016) 1 Cal.5th 376, 384-385.) First, the court determines if the party moving to strike a cause of action has shown that the cause of action arises from an act in furtherance of the moving party's right of petition or free speech. (<i>Ibid.</i>) If the moving party makes the showing required in the first step, the court then determines whether the non-moving party has demonstrated a probability of prevailing on the claim. (<i>Navellier v. Sletten</i> (2002) 29 Cal.4th 82, 88.) <u>Protected Activity</u>. Statements and writings made during judicial proceedings are protected by the anti-SLAPP statute. (<i>Code of Civ. Proc. § 425.16, subd. (e)(1).</i>) Here, Defendant met its burden showing this action arises out of protected activity. Plaintiff's complaint arises out of Defendant's communications during judicial proceedings while

		representing his client in the underlying unlawful detainer action, including settlement negotiations. (Compl. ¶¶ 1-4.) <u>Probability of Prevailing.</u> The burden shifts to Plaintiff to show probability of success on the merits of the fraud claim. The “probability of prevailing” is tested by the same standard governing a motion for summary judgment, i.e., in opposing an anti-SLAPP motion, it is plaintiff’s burden to make a prima facie showing of facts that would support a judgment in plaintiff’s favor. (<i>Taus v. Loftus</i> (2007) 40 Cal.4th 683, 714.) The plaintiff must also produce admissible evidence sufficient to overcome any privilege or defense that defendant has asserted to the claim. (<i>Flatley v. Mauro</i> (2006) 39 Cal.4th 299, 323.) Here, Defendant contends the litigation privilege under <i>Civil Code section 47, subdivision (b)(2)</i> applies. The privilege applies to “any communication (1) made in judicial or quasi-judicial proceedings; (2) by litigants or other participants authorized by law; (3) to achieve the objects of the litigation; and (4) to have some connection or logical relation to the action.” [Citations.]” (<i>Silberg v. Anderson</i> (1990) 50 Cal.3d 205, 212.) The privilege is an “absolute” privilege, and bars all tort causes of action except a claim for malicious prosecution. (<i>Hagberg v. California Federal Bank</i> (2004) 42 Cal.4th 350, 360.) Again, Plaintiff’s complaint arises out of Defendant’s communications during judicial proceedings. Defendant has shown Plaintiff’s complaint is barred by the litigation privilege. Plaintiff failed to oppose the motion showing probability of prevailing on the fraud claim or disputing applicability of the litigation privilege. The motion is therefore GRANTED. Defendant’s alternative motion to quash service of the summons is MOOT. <i>Counsel for Defendant shall give notice of this ruling.</i>
4.	Keno Capital, LLC v. Oakleaf Holding, LLC 23-1313683	Defendants Oakleaf Holding LLC, Orchid Management LLC and John L. Sorensen (“Defendants” together) Demurrer to plaintiff Keno Capital, LLC’s (“Plaintiff”) Second Amended Complaint (“SAC”) is SUSTAINED. Defendants demur solely to the eighth cause of action for Breach of the Implied Covenant of Good Faith and Fair Dealing based on lack of sufficient facts and uncertainty. (<i>Civ. Proc. Code § 430.10(e) and (f)</i>.) Defendants also contend the SAC was not filed within the 15-day deadline specified by the court. The court will proceed on the merits despite the SAC being filed late as the clerk did provide notice. The court also notes Defendant again did not make any arguments related to uncertainty, the demurrer is moot on that point. “There is no obligation to deal fairly or in good faith absent an existing contract. [Citation.] If there exists a contractual relationship between the parties. . . the implied covenant is limited to assuring compliance with the express terms of the

contract and cannot be extended to create obligations not contemplated in the contract.” (*Racine & Laramie, Ltd. v. Dep’t of Parks & Recreation* (1992) 11 Cal. App. 4th 1026, 1032.) “If the allegations do not go beyond the statement of a mere contract breach and, relying on the same alleged acts, simply seek the same damages or other relief already claimed in a companion contract cause of action, they may be disregarded as superfluous as no additional claim is actually stated. Thus, absent those limited cases where a breach of a consensual contract term is not claimed or alleged, the only justification for asserting a separate cause of action for breach of the implied covenant is to obtain a tort recovery.” (*Careau & Co. v. Sec. Pac. Bus. Credit, Inc.* (1990) 222 Cal. App. 3d 1371, 1395.)

The allegations are Defendants would honor the “continuing obligations,” which consisted of not shopping the Securities, acting honestly and in good faith, avoid allowing disruptions and interferences from third parties, and direct Stoddard to maintain Keno’s privileges and confidences. (SAC ¶ 48.) Plaintiff alleges that “implicit in a covenant of good faith and fair dealing that neither party would do anything that would have the effect of destroying or injuring the right of the other party to receive the benefits of the contract.” (SAC ¶ 138.) Plaintiff alleges Oakleaf breached this covenant by rendering it impossible for Plaintiff to timely close on the subject securities. (SAC ¶ 139.) Specifically, 1) Oakleaf directed Stoddard to reveal material terms of the subject purchase agreement to NAHS without permission, knowing NAHS desired to purchase the securities and that NAHS could without consent; 2) Oakleaf shopped the securities to NAHS during the existence of the agreement despite amendment 1 prohibiting such activity; 3) Oakleaf failed to exercise its discretion in revealing the terms of the agreement to third parties that Oakleaf knew would interfere with Plaintiff’s contractual expectation; and 4) Oakleaf failed to receive Plaintiff’s consent before informing NAHS of the terms. (SAC ¶¶ 140, 142.) Plaintiff now alleges it entered into a tripartite agreement (“Tripartite Agreement”) between Plaintiff, Sorensen, Keno, and Stoddard to maintain the privacy and confidentiality of all communication, which all parties consented to, which Plaintiff verbally asserted on several occasions. (SAC ¶ 141.) Oakleaf and Sorensen’s breach allegedly interfered with Plaintiff’s ability to receive the privacy and confidentiality sought through Tripartite Agreement, rendering any investment related to the Tripartite Agreement impossible. (SAC ¶ 143.) Plaintiff did everything it was supposed to, but as the result of Defendants’ breach, Plaintiff was injured in a sum to be determined. (SAC ¶¶ 145-148.)

It should be noted Plaintiff failed to attach the subject agreements to the SAC, however they were previously filed with the FAC. (ROA 714.) The original agreement does not contain any clause regarding taking the securities off market, nor does it contain any confidentiality/privacy clause. It does contain an integration clause indicating it contains all the agreements between the parties. (FAC, Ex. A.) Thus, while the SAC alleges there was Tripartite Agreement between the parties that the terms of the agreement would be kept under strict confidence there is

		nothing in the original agreement that requires confidentiality. As the agreement contains a final expression of the parties agreement, it cannot be contradicted by a claim of prior or contemporaneous oral agreement. (<i>Civ. Proc. Code § 1856.</i>) Plaintiff's new allegations that a Tripartite Agreement was created are not supported by the allegations. Plaintiff argues the integration clause does not matter as the Tripartite Agreement was between individuals/entities who were not parties to the purchase agreement; Stoddard, the attorney allegedly representing both sides in the transaction, Plaintiff/Jergensen (purchasers), and Sorensen (seller). However, this argument equates to what would be two breaches of separate contracts; the purchase agreement and the alleged Tripartite Agreement. Additionally, there are no allegations regarding the terms of the Tripartite Agreement, including consideration, the date entered, etc. Further, even if the Tripartite Agreement were to be considered a valid contract, the failure of the Defendants to comply with sole term alleged (keeping the purchase agreement terms confidential) would be nothing more than a breach of contract claim and would not support a breach of the implied covenant of good faith and fair dealing claim. Although Amendment No. 1 does contain a clause that the subject securities would be removed from the market during the existence of the agreement, the allegations that Defendants did not do that again equate to nothing more than a breach of contract claim, which Plaintiff has pled at cause of action number seven, and do not support a separate cause of action for breach of the implied covenant of good faith and fair dealing. Finally, consent from NAHS was required for the purchase to go through. (FAC, Ex. 1.) Plaintiff's managing member Jergensen was employed by NAHS at the time as was Olsen (CEO and board member) who signed off on the Agreement initially. (SAC ¶¶ 13, 21.) NAHS would be deemed to have notice of the terms of the agreement via those relationships at least to some extent. (<i>Civ. Code § 2332; Powell v. Goldsmith</i> (1984) 152 Cal. App. 3d 746, 750.) There are also no allegations that Defendants were able to control the actions of other entities or individuals. Plaintiff has not pled sufficient facts to support this COA. The demurrer is SUSTAINED with one final leave to amend within 15 days of written notice of the ruling. Defendants' request to take judicial notice is DENIED as the requested items are improper items for judicial notice. (<i>TSMC N. Am. v. Semiconductor Mfg. Internat. Corp.</i> (2008) 161 Cal. App. 4th 581, 594 fn. 4.) Plaintiff's objections are moot based on the denial. <i>Defendant to give notice.</i>
5.	Johns v. Children's Hospital of Orange County 25-1497840	Before the Court is a demurrer and motion to strike filed by defendant Children's Hospital of Orange County (Defendant) directed to the first amended complaint (FAC) of plaintiff Anthony Johns (Plaintiff). The demurrer is OVERRULED and the motion to strike is DENIED.

Defendant is to file an answer to the FAC within 20 days.

Motion 1: Demurrer

"In reviewing the sufficiency of a complaint against a general demurrer, we are guided by long-settled rules. 'We treat the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law. [Citation.] We also consider matters which may be judicially noticed.' [Citation.] Further, we give the complaint a reasonable interpretation, reading it as a whole and its parts in their context." (*Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318.)

First Cause of Action for Violation of California Labor Code Section 1102.5: *Labor Code section 1102.5* prohibits an employer from retaliating against an employee for sharing information the employee "has reasonable cause to believe ... discloses a violation of state or federal statute" or of "a local, state, or federal rule or regulation" with a government agency, with a person with authority over the employee, or with another employee who has authority to investigate or correct the violation. (*Labor Code*, § 1102.5(b).)

Defendant contends Plaintiff's first cause of action fails because he never alleges the person who terminated him had any knowledge of his alleged complaint about not being compensated properly. The FAC alleges Plaintiff reported his complaint to his supervisor Gerald Curry and that the decision to terminate his employment was carried out by Mr. Curry. (See FAC ¶¶ 8-9, 14.) Defendant's argument thus fails.

Defendant also contends Plaintiff does not sufficiently allege that he engaged in protected activity by complaining about the failure to compensate him for hours worked remotely because the allegations in the FAC establish that he was not permitted to work remotely but was required to work at the hospital. Thus, according to Defendant, Plaintiff cannot claim a reasonable belief that the information disclosed a legal violation. This argument lacks merit. The FAC does not allege that Plaintiff was prohibited from working remotely. The FAC alleges "Plaintiff would also routinely perform work remotely" and "Plaintiff had no issue getting this time approved because he was required to perform this work." (FAC ¶ 8.) The FAC also alleges "Plaintiff's supervisor—Director of Laboratory Services Gerald Curry—insisted that he report time for all hours he performed work, even if the work was performed outside of the hospital, during non-work hours." (*Ibid.*) These allegations are sufficient to establish Plaintiff's reasonable belief that Defendant's failure to pay for hours worked remotely constituted a legal violation.

Defendant also contends there is no allegation Plaintiff held that belief at the time he made the complaint to his supervisor, nor that he expressed as much when he made the complaint. This argument fails. (See FAC ¶ 9.)

The demurrer to the first cause of action is **OVERRULED**.

Second Cause of Action for Violation of California Labor Code Section 98.6: Defendant's demurrer to the second cause of action is based on the same arguments as its demurrer to the first cause of action. Defendant's demurrer to the second cause of action fails for the same reasons discussed above.

The demurrer to the second cause of action is **OVERRULED**.

Motion 2: Motion to Strike

Defendant moves to strike the claim for punitive damages from the FAC. The FAC pleads that Defendant unlawfully retaliated against Plaintiff for reporting Defendant's unlawful failure to pay wages by wrongfully terminating him and that Defendant attempted to conceal its motives for terminating Plaintiff by fabricating a false allegation that Plaintiff had failed to properly maintain timekeeping records. (FAC ¶¶ 11, 13.) A reasonable inference can be made that by engaging in such conduct, Defendant acted in a manner that was base, contemptible or vile and, thus, acted with malice. (See, e.g., *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912; see also, *Civ. Code* § 3294(c).)

In addition, contrary to Defendant's argument, the FAC adequately pleads facts showing that an officer, director, or managing agent of Defendant knew or ratified the alleged wrongful conduct. (See FAC ¶¶ 13-14.)

Based on the foregoing, the motion to strike is **DENIED**.

Counsel for Plaintiff shall give notice.

6. Pepper v. Lorkowski
25-1452672

Before the Court are the Demurrer and Motion to Strike filed on 3/25/26 by Defendants Huntington Seaport Condominium Association and Action Property Management (here, as moving parties, "MPs"), directed to the First Amended Complaint ("FAC") filed on 7/3/25 by Plaintiff Patricia E. Pepper ("Plaintiff").

The Demurrer

The Demurrer, which is directed to the Third, Fourth, Sixth and Seventh Causes of Action (each a "COA"), is **SUSTAINED**, with 15 days leave to amend.

The causes of action being contested are:

3. Negligent Hiring
4. Breach of Contract
6. Nuisance
7. Violation of B&P Code Sec. 17200 et seq.

For COA 3, the FAC fails to state the factual basis for asserting this claim against MPs. The vague allegations in ¶¶ 33-36 fail to identify who the alleged employer and employees or contractors were, what MPs allegedly knew or should have known about any employees or

contractors, or how any alleged negligence in hiring or retaining or supervising such employees/contractors led to Plaintiff's injury.

For COA 4, that claim appears to be based upon the lease. (FAC ¶ 41.) But the attached lease does not show MPs as parties. Claims of agency are not sufficiently pled and fail to address how liability could attach to MPs where the landlord has since been dismissed from this action. Nor are facts alleged to support the assertion that the flooding at issue was caused by MPs or came from any common area.

For COA 6, the FAC makes vague assertions in ¶ 50 about "Defendants" having harassed and threatened Plaintiff, but fails to state who did so, or how that created a condition which could constitute a private nuisance.

For COA 7, Plaintiff has failed to identify the particular portions of the statutory scheme which were allegedly violated, and state with reasonable particularity the facts supporting the statutory elements of the violation. (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 619.) Vague assertions in the FAC at ¶ 55, which appear to be directed to the landlord, do not suffice to state the claim as to MPs.

For each of those COAs, the FAC fails to allege facts sufficient to state the COA, and COA 3 is also uncertain as pled. The Demurrer is therefore **SUSTAINED**.

Plaintiff has not met her burden here to show how any potential amendment could cure these deficiencies. However, as the FAC addressed MPs only as Does, Plaintiff will be provided with an opportunity to amend to attempt to state specific facts as to each of the MPs. Plaintiff should carefully consider the elements of any of these COAs that she may attempt to reassert as to MPs, and fully state the requisite factual basis for each, as further leave to amend should not be presumed.

The Motion to Strike

The Motion to Strike is **GRANTED**.

No facts are alleged to demonstrate a basis for any fee claim as to MPs. The FAC also fails to allege facts sufficient to support a punitive damages claim against MPs. A claim for punitive damages must be supported by specific factual allegations: conclusory characterization of conduct as "intentional, willful and fraudulent" is insufficient to state a claim under *Civil Code* § 3294. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864, 872.) Plaintiff has failed to do so here. The Motion to Strike is therefore **GRANTED**, with 15 days' leave to amend.

Counsel for MPs to give notice.

7. Carlton v. Ford Motor
Company
24-1445099

Before the Court is the Motion for Summary Adjudication filed by Defendant Ford Motor Company ("Ford") on 1/5/26.

		It appears that an Opposition was belatedly served by Plaintiffs Richard Carlton and Patricia Carlton ("Plaintiffs"), to which Ford has responded here. But no Opposition has been filed. The hearing is therefore continued to 7/9/26, at 1:30 p.m. Plaintiffs are to file the Opposition papers previously served on Ford, along with a declaration stating the reason for the filing error and how/when service on Ford was effectuated, by 6/29/26. Ford may respond thereto, if it deems that necessary, by no later than 7/2/26. No other further briefing is permitted. <i>Ford is to give notice of this ruling.</i>
8.	Silveira v. Boardwalk Office Associates LLC 24-1407563	(Withdrawn)
9.	Corzine v. Riemann 20-1133569	Before the Court are two Motions filed by Defendant David Kent Riemann ("Defendant") on 3/23/26, as follows: (1) Motion to Clarify Scope of Evidentiary Sanctions Related to Local Rule 317 Compliance (Motion 1 below); and (2) Motion for Relief from Evidentiary Sanctions Pursuant to Code of Civil Procedure §473(b) (Motion 2 below). <u>Motion 1</u> seeks "clarification" that Defendant may present "previously disclosed witnesses, documentary evidence, deposition testimony" and defenses consistent with this Court's 3/6/26 order. But as the 3/6/26 Order and the related Minute Order of 2/27/26 reflect, the evidentiary sanction that was imposed precludes Defendant from presenting any documents or witnesses or other evidence at trial which was not timely disclosed in accordance with OCSC Rule 317. To the extent that such evidence was not timely disclosed in accordance with OCSC Rule 317, it is thus barred. <u>Motion 2</u> seeks relief from that evidentiary sanction under C.C.P. § 473(b). But the party seeking relief under the discretionary prong of C.C.P. § 473(b) has the burden of presenting declarations or other evidence showing specific facts to establish "mistake, inadvertence, surprise or excusable neglect." (<i>Hopkins & Carley v. Gens</i> (2011) 200 Cal.App.4th 1401, 1410.) Here, the Motion fails to identify what "mistake, inadvertence, surprise or excusable neglect" occurred, and fails to present any evidence whatsoever. Both Motions are therefore DENIED. <i>Clerk to give notice.</i>
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